

#	Case Name	Tentative
50	Alliance Funding Group v. Yang Noodle House, Inc., et al. 30-2024-01373426	Plaintiff Alliance Funding Group's unopposed motion to vacate dismissal is granted. <u>Relevant Background</u> On January 16, 2025, Plaintiff filed a notice of settlement of entire case. (ROA 45.) The court set a hearing on an order to show cause re: dismissal on a settled case, which was continued several times. (See 1/17/2025 Minute Order; 2/10/2025 Minute Order; 9/19/2025 Minute Order [ROA 48, 51, 56].) At the February 6, 2026 hearing, the court noted that Plaintiff did not file a request for dismissal prior to the hearing, did not appear at the hearing, and did not show good cause as to why the action should not be dismissed. Accordingly, the court dismissed the case with prejudice. (2/6/2026 Minute Order; Order After Hearing [ROA 58 & 59].) <u>Merits</u> Plaintiff seeks to vacate the February 6, 2026 dismissal of this action. Code of Civil Procedure section 473, subdivision (b) provides in relevant part: the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. Plaintiff has submitted its counsel's declaration as to her mistake in failing to appear at the hearing as required by the court. (Adams Decl., at ¶¶ 3-4.) The relief requested is mandatory. No opposition was timely filed. The motion for relief is therefore granted. The February 6, 2026 dismissal is hereby vacated. The court sets a hearing on an order to show cause re: dismissal on a settled case for October 9, 2026, at 9 am in this Department. Plaintiff shall give notice of the ruling and of the hearing on the OSC re: dismissal on a settled case.